



File No.: EXP202305638

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for the Protection of Data and based on the following

FACTS

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on 15/03/2023. The complaint is directed against AECORP 005, S.L. with NIF B05470380. The reasons for the complaint are as follows: the complainant states that the company AECORP 005 "is engaged in selling electricity contracts as an agent of the marketer FACTOR ENERGÍA S.A." She indicates that on 07/02/2023, she received a call in which they identified themselves as her energy company, offering her a more advantageous rate. The complainant points out that they had all her personal data, receiving after the call a text message with the request for electronic signature of the contract. Finally, she receives a text message confirming the contract, despite indicating that she did not accept the message. On 14/03/2023, she receives a charge in her bank account from FACTOR ENERGÍA.

She provides:

- A screenshot from her mobile showing an SMS from 07/02/2023 with the request for electronic signature of the contract and a second SMS with the confirmation of said signature on the same date.
- A screenshot showing the details of the contracting request with the marketer FACTOR and date of receipt 22/02/2023, type of annual contract.
- A copy of the receipt dated 14/03/2023 in the name of the complainant showing a creditor to FACTOR.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 04/05/2023, the complaint was forwarded to FACTOR and AECORP, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received by FACTOR on 12/05/2023 as evidenced by the acknowledgment of receipt in the file. AECORP was not located within the timeframe for the forwarding of the complaint, as the notification to AECORP expired due to lapse and the reiteration of the request via postal services was returned as unknown despite having been sent to the address confirmed as correct by the AEAT. On 29/11/2023, the notification of reiteration sent on 16/05/2023 was accepted through the DEHÚ service.

FACTOR, upon receiving the notification of the forwarding of the complaint on 12/05/2023, requested an extension of the deadline, submitting its written allegations on 26/06/2023, in which the following documents are attached:

- A copy of the certificate issued by a trusted third party that includes a copy of the confirmed contract
- A copy of the response sent to the complainant dated 17/04/2023
- A protocol prepared by the company's DPO to ensure compliance with data protection regulations in the execution of agency work in telemarketing mode
- A protocol for addressing the rights of data subjects

The most relevant statements provided by FACTOR in its written allegations are:

- "The commercial call was made by an external company collaborating with our company FACTOR ENERGIA, called AECORP 005 SL, with which we maintain a commercial agency relationship (not a service provision), so this company conducts its commercial activity with its own database for which it is responsible for the processing, corresponding the data processing related to the making of the call to that company."
- "In the aforementioned call, the agent correctly identified themselves by stating the name of the company from which they were calling (AECORP 005, S.L.) and then indicated that the purpose of the

call was to convey an offer for supply with our company FACTOR ENERGIA.” They provide the transcript of the beginning of the call:

Commercial Agent: Good afternoon, we are calling from the Energy Advisory AECORP 005 SL. My name is (...), am I speaking with Ms. A.A.A.?

Complainant: Yes.

Commercial Agent: Do you accept this commercial call to inform you about the price offer from FACTOR ENERGIA?

Complainant: Yes.

- “The processing subject to the complaint corresponds to the moment the call was made by the aforementioned collaborating company according to its own database for which they hold the status of responsible when carrying out said processing, not being our company FACTOR ENERGIA responsible for the processing at that moment.”

- “In that contracting call, consent was obtained verbally via telephone, after which Ms. A.A.A. confirmed the contracting by electronic means.”

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- We have confirmation, through a trusted third party, that Mrs. A.A.A. confirmed the hiring by electronic means: the confirmation of the hiring was made by Mrs. A.A.A. via SMS; specifically, a link was sent via SMS to her mobile phone (to the number provided by her during the hiring call) which contained the draft of the contract, and it is recorded that she accepted the hiring by pressing the signature button that appeared in that process.”

- “After the corresponding validation by personnel from FACTOR ENERGIA, a request is made to the distribution company for the change of marketer and the contractual relationship is initiated.”

- “The validation consisted of verifying that the channel had made available to FACTOR ENERGIA a complete copy of the supply contract signed by the client, the audio of the hiring call with all the necessary pre-contractual information according to the minimum content speech authorized by FACTOR [...] as well as the certificate issued by the trusted third party certifying the effective consent of the client.”

FACTOR has provided a copy of the Click&Sign; electronic communication certificate, with LLEIDANETWORKS (hereinafter Lleida.net) as the trusted third party, certifying that it has generated in its records the following electronic evidence of the operations carried out by AECORP on behalf of FACTOR on the date 07/02/2023:

- Sending of an SMS to the phone ***TELÉFONO.1 for the initiation of the formalization of the contract subject to the claim, a message that includes a link to said contract. Attached is the document that was available for reading and downloading at that web address.

- Access to the web address for signing the documents.

- Receipt of an HTTPS request from the IP (...) corresponding to the signing event via “Pressing the signature button.”

The attached document, the contract subject to the claim, specifies an electricity supply contract for Change of Marketer in the name of the claiming party with FACTOR.

On the website of the Ministry of Economic Affairs and Digital Transformation, it is verified that Lleida.net is a qualified trusted electronic services provider as established in the eIDAS Regulation for the entire European Union and provides the qualified service of certified electronic delivery, as stated in the list prepared by the Ministry of Economic Affairs and Digital Transformation, <https://sedediatid.mineco.gob.es/Prestadores/TSL/TSL.pdf>: Trust list of qualified trusted electronic service providers (TSL) corresponding to providers that provide qualified trusted electronic services and that are established and supervised in Spain.

Upon consulting the claiming party about the ownership of the telephone line specified in the previous certificate, they declare that they are the sole owner of the line ***TELÉFONO.1.

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THIRD: On 15/06/2023, in accordance with Article 65 of the LOPDGDD, the claim submitted was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On 11/09/2023, a request for information was made to FACTOR requesting, among other points, the origin of the personal data of the claiming party, a copy of the contract with the external collaborating company that formalized the contract subject to the claim, and the list of evidence stored to prove the verification that FACTOR carried out to ensure that the hiring was carried out properly.

After requesting an extension of the deadline, the responding party FACTOR replied to this request for information with a registration date of 24/10/2023, providing the following documentation along with its response:

- Document No. 1: Copy of the commercial contract regulating the agency relationship between FACTOR and AECORP.
- Document No. 2: Copy of the recording of the hiring call made by the agent company AECORP.
- Document No. 3: Copy of the supply contract of the claiming party.
- Document No. 4: Certificate issued by the trusted third party certifying the confirmation of hiring by electronic means.
- Document No. 5: Copy of the recording of the welcome call made as a verification prior to requesting the change of marketer with the distribution company.
- Document No. 6: Copy of the invoice associated with the bank receipt for the amount of 158.74 dated 14/03/2023.
- Document No. 7: Mandate allowing the direct debit of the receipt.
- Document No. 8: Contacts and complaints received from the affected party.

From the information gathered during the investigation, it is evident that:

2.1-. Regarding the personal data of the claiming party, its origin, and the contract subject to the claim. According to FACTOR in its response (FACTOR_Resp#1), the personal data of the claiming party that FACTOR has are those that appear.

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In the supply contract: Name and surname, ID number, Phone number, Address, CUPS number, Bank account number, and Voice recording.

FACTOR adds that personal data was obtained by AECORP, a company acting as a commercial agent as a sales channel for FACTOR through the modality of telephone sales (telemarketing), “with its own database (not with the database of FACTOR ENERGIA nor provided by it)” and that “it sent the contracts obtained by it as a result of its agency work (sales promotion) for subsequent validation and activation with FACTOR.”

FACTOR clarifies its usual procedure:

“the agent company conveys a commercial offer from FACTOR ENERGIA to the end user and, if the user shows interest in accepting the conditions, the contracting process is initiated. To do this, the agent fills out the supply contract of FACTOR ENERGIA (the product subject to the commercial offer) with the data collected from the client. And, after the verbal provision of consent and, once this contracting is confirmed by electronic means (SMS), in accordance with current regulations, the agent company proceeds to send the contract to our marketing company FACTOR ENERGIA with all the documentary supports required by it to validate and activate the contract: supply contract, contracting call, and certificate issued by the trusted third party (evidencing confirmation by SMS).

It is from that moment that FACTOR ENERGIA proceeds to incorporate and process the personal data

of the client who has signed the contract through the agent company.”

Regarding the contract subject to the complaint, “it was activated in our marketing company on February 23, 2023, and is recorded as canceled since February 26, 2023 (due to a change of marketer).”

-2.2-. Regarding the contract between FACTOR and the external collaborating company AECORP.

Upon request for a copy of the contract between FACTOR and the external commercial agent of FACTOR that formalized the supply contract on behalf of FACTOR with the complaining party on February 7, 2023, the responding party provides as document No. 1 (FACTOR_Resp#1_Doc#1) the copy of the commercial contract that regulates the commercial agency relationship between FACTOR and AECORP dated July 29, 2021.

After analyzing the document, it is highlighted that this is an assignment agreement with subrogation of an agency contract (telemarketing modality).

The subrogation contract is signed in Barcelona on July 29, 2021, with the ASSIGNOR being the company DOSORIANOSBAR SERVICES S.L. (hereinafter, DOSORIANOSBAR), ASSIGNEE being the company AECORP, both engaged in the Promotion of marketing various products (telemarketing), and also signed by FACTOR, whose main activity consists of the marketing of electricity and natural gas.

AECORP fully and unreservedly subrogates itself in the rights and obligations of the past, present, and future parties of THE ASSIGNOR in virtue of the aforementioned.

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agency contract, signed on March 4, 2020, between DOSORIANOSBAR and FACTOR ENERGÍA.

The document FACTOR_Resp#1_Doc#1 incorporates on page 4 an annex related to the protection of personal data, which states among other points:

ANNEX 7. PROTECTION OF PERSONAL DATA

"In order to fulfill the agency activity subject to this Contract, THE AGENT declares that they hold a file with contact data of potential Clients in the market and declares that it has been obtained lawfully, being authorized to process the data in the terms of the agency activity entrusted to them by THE COMPANY, that is, the issuance of calls for customer acquisition.

Therefore, THE AGENT declares through these clauses that the contact data of potential Clients who will be the recipients of their acquisition activity has been obtained through a legitimate transfer or from publicly available sources without restrictions and is carried out in accordance with the admissible requirements of the GDPR and after filtering the database with the advertising exclusion list Lista Robinson. THE AGENT will make the calls acting as the data controller in their capacity as the holder of the database and at their own risk and responsibility.

To demonstrate that the data processing for the issuance of calls is carried out legitimately and in compliance with the specifications of the previous paragraph, THE AGENT declares and attaches to this contract the following:

That the legitimacy for the processing of the personal contact data file comes from: [...]

- the consent of the data subject (Attach model where the consent of the data subject is obtained to offer the service/product subject to this contract)

- Other circumstances: (specify) "

[...]

"From the moment the potential client accepts the commercial purpose of the call and gives their consent to the contracting of THE COMPANY's product, THE AGENT will act as the Data Processor for the collection and registration of the personal data of the data subject, with THE COMPANY being the data controller.

[...] The Parties acknowledge the following points:

I. Purpose of the data processing assignment

Through these clauses, THE AGENT is authorized, as the data processor, to process on behalf of FACTOR ENERGÍA, S.A. as the data controller, the personal data necessary to carry out the agency activity in the telemarketing modality specified in this Contract (promotion and commercial distribution of the various modalities of electricity and/or gas supply and other ancillary products offered by FACTOR, in accordance with the instructions and action programs determined by FACTOR)."

II. Identification of the affected information

For the execution of the services derived from the fulfillment of the purpose of this assignment, THE AGENT will carry out customer acquisition for FACTOR, so such data will be made available to FACTOR and under no circumstances will THE AGENT use them for their own purposes [...]

III. Duration [...]

IV. Obligations of the data processor

The data processor and all its personnel are obliged to: [...]

- Use the personal data to which they have access only for the purpose of this assignment. Under no circumstances may they use the data for their own purposes.

[...]"

(Note: the underlining has been added by the Agency)

Regarding the agency contract (telemarketing) subject to subrogation and signed on March 4, 2020, between FACTOR (THE COMPANY) and DOSORIANOSBAR (THE AGENT):

"FIRST. - OBJECT AND SCOPE"

It is summarized that DOSORIANOSBAR is obliged to FACTOR "to carry out and provide the following work and services necessary for the execution of telemarketing sales campaigns":

- .- Commercial prospecting
- .- Presentation of offers through call issuance.
- .- Information capture.
- .- Voice recording of the contracting process.
- .- Closing of sales.
- .- Telephone validation and validation of consent through electronic means (SMS).
- .- Registration of the contract in THE COMPANY's IT Platform

"FOURTH. - OBLIGATIONS OF THE AGENT

THE AGENT must act at all times loyally and in good faith. [...]

[...]

In all telephone communications, THE AGENT must explicitly and clearly specify [...] the identity of the company on behalf of which the call is made and the source from which the personal contact data was obtained [...]

In relation to the General Data Protection Regulation (GDPR) [...] THE AGENT must strictly comply, at all times, with the legal requirements regarding the authorization, processing, and management of personal data (and its categories) [...]

NINTH. - PROHIBITION OF INADEQUATE OR FRAUDULENT MARKETING.

[...]

THE AGENT undertakes to respect the Agent's Code of Conduct and the Agent's Conduct Rules set forth in annexes 5 and 6.

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TWENTY-FIRST. - PROTECTION OF PERSONAL DATA

[...]

To fulfill the agency activity subject to this Contract, THE AGENT declares that it is the owner of a file containing the contact details of potential clients in the market, which has been obtained lawfully, being authorized to process the data in accordance with the terms of the client acquisition services entrusted to it by THE COMPANY. For this purpose, THE AGENT must specify in Annex 7 regarding data protection the source from which it obtained such data.

THE AGENT will act as the Data Processor for the collection and registration of the personal data of individuals interested in entering into an energy supply contract, with THE COMPANY being the Data Controller, which states and guarantees that all processing of personal data will be carried out in compliance with the provisions of the GDPR and the LOPDGDD.

Regarding the personal data obtained as a result of the execution of this Contract, THE AGENT undertakes to use or apply the personal data obtained in the execution of the Contract in accordance with the instructions provided by THE COMPANY and solely for the purpose of fulfilling the Object of this Contract, ensuring that the data subject to processing is handled only by those employees whose intervention is necessary for the contractual purpose.

[...]

ANNEX 7. PROTECTION OF PERSONAL DATA

To fulfill the agency activity subject to this Contract, THE AGENT declares that it is the owner of a file with contact data of potential Clients in the market and states that it has been obtained lawfully, being authorized to process the data in accordance with the agency activity entrusted to it by THE COMPANY, namely, making calls for client acquisition.

Therefore, THE AGENT declares through these clauses that the contact data of potential Clients who will be the recipients of its acquisition activity has been obtained from a legitimate transfer or from publicly available sources without restrictions and is carried out in accordance with the admissible requirements of the GDPR.

To demonstrate that the data processing for making calls is carried out legitimately and in compliance with the specifications of the previous paragraph, THE AGENT declares and attaches to this contract the following:

That the legitimization for the processing of the personal contact data file comes from: [...]

- the consent of the data subject (Attach model where the consent of the data subject is obtained to offer the service/product subject to this contract)

- Other circumstances: (specify) PURCHASED DATABASE IN:

- .- AXESOR E INFORMA.

- .- BBDD A TU MEDIDA.

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THE AGENT will act as the Data Processor for the collection and registration of the personal data of the interested party, with THE COMPANY being the data controller.”

(Note: the underlining has been added by the Agency)

From this point onward, Annex 7 of the contract subject to subrogation is identical to Annex 7 provided in the assignment.

No section or information related to possible subcontracting has been found in the contract. The only related text is as follows:

“if THE COMPANY were declared liable [...] due to any legal breach [...] carried out by THE AGENT, Sub-Agencies, or any other natural or legal persons [...] it shall have the right to demand [...] damages”

-2.3-. Regarding the evidence provided by FACTOR to substantiate the verification carried out on the hiring.

When requested for the list of stored evidence to substantiate the verification carried out by FACTOR to ensure that the hiring was conducted appropriately, FACTOR provides the following evidence:

- Document No. 2: copy of the recording of the hiring call made by the agent company AECORP.

(FACTOR_Resp#1_Doc#2)

- Document No. 3: Copy of the supply contract of the claimant party. (FACTOR_Resp#1_Doc#3)

- Document No. 4: Certificate issued by the trusted third party confirming the hiring by electronic means. (FACTOR_Resp#1_Doc#4)

- Document No. 5: Copy of the recording of the welcome call made as a verification prior to requesting the change of supplier before the distribution company (FACTOR_Resp#1_Doc#5)

“The checks carried out by FACTOR ENERGIA to ensure the proper execution of the hiring consisted of verifying that AECORP had sent FACTOR ENERGIA all the supporting documentation of the customer's consent and evidence of compliance with current regulations.

In relation to this hiring, prior to requesting the change of supplier before the distribution company, FACTOR ENERGIA, through its own staff, carried out a quality validation to verify that the hiring was correct. Specifically, it was verified that the sales channel had sent, along with the contract to be activated, the audio file with the hiring call, in which the duty of information was fulfilled, and the certificate issued by the trusted third party confirming that the telephone confirmation had been confirmed by electronic means and reviewed that the contract data matched those confirmed in the same call. In this case, it was also confirmed that a welcome call had been made (which is carried out by the aforementioned sales channel in order to verify the quality of the service and the compliance with the management of the teleoperator who mediated in the sale)."

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The contract subject to the complaint (FACTOR_Resp#1_Doc#3) is similar to that provided along with the certificate from the trusted third party, submitted by FACTOR both in the allegations regarding the transfer of the complaint and in the response to the information request, (Transfer#1_Doc_1) and (FACTOR_Resp#1_Doc#4).

Regarding the recordings of the calls, once analyzed, it is confirmed that AECORP identifies itself in them as the company making the call. "We are calling you from the energy company AECORP 005 S.L."

In the recording of the hiring call, it is observed that:

.- The purpose of the call is the hiring of a supply:

"We are calling you to conclude the hiring process with FACTOR ENERGÍA, to verify your data and to send you the contract for your signature"

.- AECORP knows the personal data of the claimant party prior to the call:

"In accordance with the regulations, we inform you that your data comes from the file (...) (illegible) which is owned by the management company AECORP 005 SL."

.- The data that is verified are as follows:

Name, ID number, Mobile phone number, Date of birth, Full address, IBAN.

-3-. Regarding the information provided by AECORP in response to the information requests

On March 14, 2024, an information request is made to the defendant party AECORP requesting, among other points, the origin of the personal data of the claimant party and the procedures followed to comply with the duty of information at the time of its collection.

The defendant party responds to this information request on April 9, 2024, with registration number REGAGE24e00025997313, providing the following documentation attached to its response (AECORP_Resp#1):

.- Document No. 1: Copy of the supply contract formalized with the claimant party.

(AECORP_Resp#1_Doc#1)

.- Document No. 4: Commercial agency contract formalized between AECORP and FROM ZERO

(AECORP_Resp#1_Doc#4)

Due to the absence of responses to some of the requested points, on April 11, 2024, a second information request is made to the defendant party AECORP, which responds on April 22, 2024, with registration number REGAGE24e00029406003, providing copies of the two recordings of the telephone calls, which we will refer to hereafter as (AECORP_Resp#2_Doc#1) and (AECORP_Resp#2_Doc#2), along with its response (AECORP_Resp#2).

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-3.1-. Regarding the activity carried out by AECORP.

In its response to the first request (AECORP_Resp#2), AECORP informs about the activity it develops as a commercial intermediary:

“This activity involves hiring several collaborators who are responsible for attracting customers.

These collaborators offer them to enter our website, so that through a security control guaranteed by the company Lleidanetworks, they indicate their data, requesting that we contact them to manage the sale. The customers ultimately contract the service with the company that hires us, in this case, the supply of electricity as they indicate. That is to say, we are responsible for conducting audits and managing the sale with those customers provided by our collaborators, for the contracting with the company that hires us, offering that protection and security in the contracting.”

(Note: the underlining has been added by the Agency)

-3.2-. Regarding the personal data of the claimant, its origin, and compliance with the duty of information at the time of its collection.

AECORP, in its response to the second request for information (AECORP_Resp#2), provides a screenshot of the system containing the claimant's data (name and phone number) and indicates that this information about its customers is obtained through the collaboration channel established with the company FROM ZERO.

It adds:

“Our services are based on explaining the offer to be contracted over the phone, validating the customer's data, and sending the contract to be signed with the new marketer via SMS. Within 24 hours after signing, we proceed to make the welcome call. Additionally, before carrying out the validation and contracting call, we verify that the involved party is not included in the ROBINSON list and that we are allowed to contact them.”

Having been consulted on two occasions about the file from which the claimant's data originates and compliance with the duty of information at the time of data collection, AECORP does not provide information in this regard.

“As explained, the data comes from the collaboration channel with the company ZERO BUSINESS S.L., which we confirm is the company responsible for attracting the claimant.”

-3.3-. Regarding the contract between AECORP and FROM ZERO.

AECORP provides, along with its response, a copy of the Commercial Agency Contract formalized between AECORP and FROM ZERO (AECORP_Resp#1_Doc#4), signed in Barcelona on April 1, 2022, in which AECORP acts as THE COMPANY (dedicated to providing consulting and optimization services of any kind in the area of energy efficiency and savings) and FROM ZERO as THE AGENT (with business activity as a call center aimed at promoting and intermediating the sale of various products and/or services).

AECORP requires a commercial agent (FROM ZERO) “to promote the sale of the products and/or services referred to by THE COMPANY, through telephone and/or call center channels.”

The OBJECT of the contract is the performance by FROM ZERO “of an intermediation and promotion activity for the sale of the products and/or services of the energy and/or gas sector campaigns, as well as energy efficiency (tangible equipment) referred to by THE COMPANY, via telephone (through outgoing calls).”

The OBLIGATIONS of FROM ZERO include, among others:

“d) To inform truthfully and transparently about the conditions and specifications of the products and/or services subject to this Contract, to the recipients of the commercial offer.

[...]

l) To strictly comply with the current regulations regarding data protection and with the obligations for which it is responsible under this Contract.

[...]

s) To comply with the quality and productivity standards established for the operations subject to this Contract, as well as with the Sales and Quality Protocol for telephone contracting and with the Policy of Good Commercial Practices, attached to this Contract through the corresponding Annex II A and II B.

[...]

u) To have a call recording system, recording all calls made to the recipients of the commercial offer from start to finish, as well as retaining them for a minimum period of two (2) years and making all

sales calls (effective or not) as well as validation (verification) calls involving products and/or services referred to by THE COMPANY available to THE COMPANY daily for the corresponding quality audit.” Regarding the protection of personal data, the contract includes a clause highlighting, among other information, that FROM ZERO is an independent data controller that uses its own databases, with data obtained from the data subjects themselves:

“TWELFTH. PROTECTION OF PERSONAL DATA.

16.1 As a result of the AGENT's activity of promotion for sale and intermediation described in Clause FIRST of this Contract, the AGENT will carry out a communication of personal data to THE COMPANY and the supplier of the product and/or service in question.

This data transfer occurs in connection with the databases that the AGENT, in its capacity as an independent data controller, will use for offering the products and services referred to by THE COMPANY.”

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16.2 The AGENT states that the personal data has been obtained from the data subjects themselves, and that, in any case, it guarantees compliance, in particular, with the information obligations set forth, among others, in Articles 13 and 14 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, General Data Protection Regulation (hereinafter, “GDPR”), as well as in any other applicable regulations, even if they have a national character, that develop and/or modify it. The AGENT guarantees that it will duly comply with the aforementioned obligations prior to the data being provided to THE COMPANY, particularly regarding the duty to inform and to obtain sufficient legitimacy and/or legality for its timely processing, regardless of the source from which the personal data originates, and committing to impose identical obligations on third parties from whom these data may originate as those established for the AGENT.

Specifically, with respect to the personal data communicated as a result of the described intermediation, the AGENT, in its capacity as an independent data controller, expressly commits to:

a) Have its own databases of potential Clients, which must comply with the requirements established by the applicable data protection regulations and to which it will offer the products and services referred to by THE COMPANY, in case they show interest.

b) Present itself to potential Clients in its own name, as the data controller of these.

c) Guarantee the lawful origin of the personal data and exercise the actions provided for in Clause FIRST of this Contract only on those interested parties who have provided their consent for the transfer of their personal data to THE COMPANY and to the supplier of the promoted product and/or service, for the aforementioned purpose. The AGENT will be fully responsible for having obtained the prior and informed express consent of the interested parties to be contacted for the promotion of the sale of the products and services referred to the AGENT by THE COMPANY, as well as for the obligation related to filtering these in the advertising exclusion lists.

d) Inform the interested parties duly and in accordance with the provisions of the applicable regulations about the purpose of using their personal data, as well as the transfer of their personal data to THE COMPANY and the supplier of the product and/or service in question, as provided in this Clause.

e) Comply with the obligations imposed on it as the data controller of its own databases regarding the proper consultation of the advertising exclusion lists in order not to contact those users included in the official lists as provided in Article 23.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, “LOPDGDD”).

f) Ensure compliance with the obligations that correspond to it under the provisions contained in this Contract and in the current regulations on personal data protection.

g) Have adopted the appropriate security measures in accordance with the risk analysis carried out, in order to ensure the confidentiality and integrity of the data subject to communication.

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h) Communicate, when appropriate, any corrections or deletions that occur in the information

transmitted under this clause, as briefly as possible and always within the legally established deadlines.

[...]

16.3 For its part, THE COMPANY expressly acknowledges that, until the communication of personal data in its favor takes place, the personal data to which it may have access are the exclusive property of THE AGENT. The communication of personal data by THE AGENT to THE COMPANY implies that the latter also becomes an independent Data Controller,

[...]

16.5 THE AGENT shall indemnify THE COMPANY for any claims that may be filed (especially in the event of the initiation of any type of proceeding by the Spanish Agency for Data Protection or any other competent body) that arise from THE AGENT's failure to comply with the obligations and guarantees established in this clause." Regarding the possible subcontracting of the activity, the contract states in the eighteenth clause that "it cannot be subject to total or partial assignment by THE AGENT.

18.2 THE AGENT may not hire third parties for the execution of this Contract (other than its own employees) unless expressly authorized in writing by THE COMPANY."

ANNEX II A - SALES AND QUALITY PROTOCOL (PREM) details "the sales process and quality control of the commercial promotion operations of the products and/or services referred to by THE COMPANY, through a telephone channel and/or call center in which THE AGENT intervenes via a telephone channel platform." It specifies the FROM ZERO procedure regarding recruitment campaigns, sales calls, contract signing via certified SMS, validation of the contract, and quality control.

In particular, the contract refers to:

"2. OBLIGATIONS

2.1 SYSTEM OF DIALING AND IDENTIFICATION OF THE TELEPHONE LINES USED

THE AGENT must have a dialing system for making calls that is adequate [...] The telephone numbers that THE AGENT will use for the execution of this Contract must be previously informed to THE COMPANY through the Responsible Declaration that must be attached to this Contract. [...] Operations involving calls from phones that have not been duly declared will not be accepted.

2.2 DATABASES (BBDD)

THE AGENT, regarding the use of its own or third-party databases for the execution of this contract, undertakes to:

- GUARANTEE to THE COMPANY that the databases used by it for the execution of the Contract are always and in all cases lawful, having the express and voluntary consent of the client for receiving the type of call in question, being responsible for the proper processing of such data and for any claims related to their use, having to prove this to THE COMPANY at the beginning of each campaign and during the execution of the Contract, if THE COMPANY so requires.
- PROVE to THE COMPANY that prior to conducting any telephone recruitment campaign for individuals, under Article 23 of the LOPDGGD (Organic Law 3/2018, of December 5, on Data Protection and Guarantee of Digital Rights) regarding the consultation of exclusion systems, the databases are duly filtered with the Robinson List (Here is the link to the Robinson List: <https://www.listarobinson.es/>).

[...]

3. SALES PROCEDURE

3.1 SALES CALL

In any case, during the sales call made by THE AGENT, the following points must be clearly and understandably communicated to the recipient of the commercial offer, respecting in all cases what is established in the COMMERCIAL GOOD PRACTICES POLICY:

- a) Identify oneself, at the beginning of any telephone conversation, clearly, with one's own name, avoiding practices or messages that generate confusion, indicating the commercial purpose of the call.
- b) Inform the client that the call will be recorded.
- c) Inform that a change of their current supplier will be made, if applicable, indicating in all cases who the new energy and/or gas supplier will be.
- d) The product(s) that will be contracted.

e) During the call, the contract holder will be asked to provide a series of personal data and data related to the supply point, in order to correctly identify the holder. Contracting by a third party on behalf of the holder is not allowed.

THE AGENT will record all sales calls (effective or not) made to the recipients of the commercial offer under the execution of this Contract, from start to finish, and these must be made available to THE COMPANY daily for control.

These must be sent to THE COMPANY via a system that prevents manipulation. All recordings must be in MP3 format.

3.2. SIGNING OF THE CONTRACT

Once telephone acceptance has been obtained from the recipient of the commercial offer, the corresponding energy and/or gas supply contract for the campaign in question will be generated through the tool made available to THE AGENT for these purposes, with the contracting being carried out through a:

- Certified SMS system: a certified SMS will be sent to the final client, who must respond with a "YES," thereby validating the contracting (it will be

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must inform the client to have their phone available to finalize the process).

[...]

THE AGENT must record the sales operations in the tool provided by THE COMPANY (CRM),

[...]

All information provided to the recipient of the commercial offer during the sales process by the AGENT, which results in a contracting consent, must be reflected in the corresponding Contract, in electronic support, a copy of which along with the general and specific contracting conditions must be provided to the recipient, now the Contractor, and must be duly signed, using the SMS certification system made available to the AGENT for each campaign. Under no circumstances will THE COMPANY accept any contract that is not duly certified by the aforementioned system.

[...]

3.3. VALIDATION OF THE CONTRACTING.

THE AGENT, in accordance with the applicable regulations for the subscription of distance contracts, must ensure that the sales operations of the products and/or services referred to by THE COMPANY, through telephone and/or call-center channels in which they intervene, are correct and for this purpose, will carry out a quality and validation call to the recipient, following the script set by THE COMPANY with the necessary adaptations in each case, and must at a minimum record the following aspects:

a) Identification of the client.

b) Clear description of the product to be contracted and that it is a change of provider (if applicable).

c) Consent. Final confirmation of the contracting by the Client.

This quality and validation call (verification) must be recorded from start to finish and must be kept in a separate file from the sales call. It must be sent to THE COMPANY through a system that prevents its manipulation and in MP3 format, in accordance with the periodicity established for this in the Agency Contract."

(Note: the underlining has been added by the Agency)

-3.4-. Regarding evidence gathered from the AECORP group website.

On September 8, 2023, the AECORP group website was navigated, and evidence was collected in the form of screenshots from the following links, which are recorded as associated objects in SIGRID and incorporated into the file:

.- <https://grupoaecorp.com/>

.- <https://grupoaecorp.com/aviso-legal/>

.- <https://grupoaecorp.com/politica-privacidad/>

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It is noteworthy to highlight that the initial website of the AECORP group offers a discount upon registration, for which it requests the entry of a phone number and CUPS and to check the box for acceptance of data protection, which specifies:

"I EXPRESSLY ACCEPT the processing of my personal data by AECORP 005, S.L. for the receipt of commercial communications by any means, including electronic means (calls, WhatsApp, email), regarding products, services, promotions, and offers of my interest."

Along with the boxes for collecting data, there is an informative text about personal data protection:

Data Controller: Aecorp 005, SL, with CIF B05470380 and registered office at Calle José Olondriz Ostiz nº 4, Lleida (25005).

Purpose of the processing: To make commercial offers regarding products and services from any sector of activity (including energy, telecommunications, etc.) by any means, including electronic means (calls, WhatsApp, email, etc).

Data processing: Collection of your personal data provided in the form, inclusion of the data in a file owned by Aecorp 005 S.L., contact for commercial purposes, and other necessary processing to fulfill the purpose of the processing.

Legitimizing basis: Interested consent.

For its part, both the legal notice and the privacy policy detail who is behind the domain grupoaecorp.com:

AECORP 005, SL

NIF: B05470380

Registered office: Carrer de José Olondriz Ostiz 4, Lleida (25005)

Contact email: info@grupaecorp.com

Data protection email or Data Protection Officer: info@grupaecorp.com

AECORP will process personal data as the Data Controller for all web pages linked to said company.

-4-. Regarding the information provided by FROM ZERO in response to the information requests

On April 11, 2024, an information request was made to the claimed party FROM ZERO, asking for the origin of the personal data of the claiming party and the procedures followed to comply with the duty of information at the time of its collection.

The claimed party responds to this information request with a registration date of April 18, 2024, and number REGAGE24e00028492299, providing in its response document (FROM_ZERO_Resp#1) the following information and statements:

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"On behalf of this company, contact was made with the complainant to inform her of an offer, what is known as a solicitation call. After she expressed her interest in it, we informed the collaborating company, AECORP SL, so that they could proceed with the hiring."

In the absence of a response to some of the requested points, on April 25, 2024, a second request for information was made to the defendant party to request a copy of the recording of the solicitation call, as well as a detailed description of the customer solicitation procedure via telephone and to clarify the procedure used to communicate the information related to the complainant to AECORP.

The defendant party FROM ZERO responded to this request for information on May 8, 2024, with registration number REGAGE24e00033576058, providing the following documentation along with its response (FROM_ZERO_Resp#2):

.- Standard argumentation (FROM_ZERO_Resp#2_Doc#1)

From their responses, the following information can be extracted:

-4.1-. Regarding the personal data of the complainant, its origin, and compliance with the duty of information at the time of collection.

FROM ZERO, in its response to the second request for information (FROM_ZERO_Resp#2), indicates

that it does not have any personal data of the complainant.

"The call was random; we could not know the identity of the line holder or any data of that person."

Regarding compliance with the duty of information at the time of data collection, it specifies:

"Article 13, concerning the information that must be provided when obtaining personal data from the interested party. In our working mechanism, as we have already explained, we do not have access to personal data of the caller. These are random calls. When the subject shows interest, they access a webpage, enter their phone number, and consent to receive a call in which their personal data will be obtained.

Article 14, regarding the obligation to inform the interested party of the origin of personal data when it has not been obtained from the interested party. I reiterate my previous response; we did not have access to personal data, so there is no need to inform about its origin."

(Note: the underlining has been added by the Agency)

It is important to highlight that the contract signed between AECORP and FROM ZERO (Document AECORP_Resp#1_Doc#4) specifies that the phone numbers used by FROM ZERO must be previously informed to AECORP (see ANNEX II A – (PREM) – 2. Obligations in section 3.3 above).

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-4.2-. Regarding the solicitation call and the procedure used to communicate the data to AECORP.

When requested for a copy of the recording of the solicitation call and the identification of the telephone line used for it, FROM ZERO specifies that

"We do not have this call. It was the result of a temporary campaign that consisted of informing the person about the availability of an offer.

The call was made with a call broadcasting program called Leaddesk."

Regarding the consent granted by the complainant for receiving said call, FROM ZERO clarifies that:

"At the time of making the call, in February 2023, the recipient of the call, in order to receive it or not, was only verified to ensure that they were not registered on the Robinson list. That verification was indeed done."

Regarding the procedure used to communicate the information related to the complainant to AECORP, FROM ZERO specifies:

"In the solicitation call, once the person was informed of the offer and showed interest in it, they had to enter their mobile phone number on a website, after which they would receive a call to initiate the hiring process."

It is important to highlight that the contract signed between AECORP and FROM ZERO (Document AECORP_Resp#1_Doc#4) specifies that it is the AGENT's (FROM ZERO) obligation to have a call recording system, and all calls made to the recipients of the commercial offer must be recorded from start to finish.

-4.3-. Regarding the customer solicitation procedure via telephone.

FROM ZERO states in its response to the second request for information (FROM_ZERO_Resp#2):

"The procedure in February 2023 was:

Filtered phone numbers by Robinson were called, and they were informed that if they were interested, there were offers available regarding their electricity supply.

In order for the prospective client to hear the offer, they were directed to the website where they had to enter their phone number to receive the call with the details of the offer and the terms of the contract.

The interested person would receive the call from AECORP. At that point, we disappear from the equation, with AECORP being the one who knows the details of the call.

We attach a standard argumentation."

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However, the provided document (standard argumentation) does not include the previously explained details regarding the recruitment call. Instead of providing the standard argumentation for the recruitment call made by FROM ZERO, they have supplied the argumentation for the call made by AECORP to conclude the contracting process with FACTOR, to verify the data, and to send the contract for signature.

In the document titled SCRIPT AECORP, the argumentation that the telephone operator must convey is shown, highlighting the following points:

- "In accordance with the regulations, we inform you that your data comes from a file owned by AECORP 005, S.L. You may exercise your rights of access, rectification, deletion, opposition, limitation, and portability at any time by contacting the email address info@grupoaecorp.com or through this channel."
 - There is a section that indicates "VERIFICATION / DATA COLLECTION" where the Name and Surname, ID number, contact phone number, email address, date of birth, and age are collected.
 - "You will be able to read the detailed conditions of the contract at the link that we will send to the mobile number you provided so that you can confirm the contracting and the change of marketer to FACTOR ENERGIA."
 - "We inform you that we will process your personal data to maintain and develop the contractual relationship with FACTOR ENERGIA and to comply with legal obligations. Your data may be communicated to public administrations, and we may consult files of financial solvency and credit, and in the event of non-payment, the data related to it may be communicated to such files."
- It is important to highlight that, although FROM ZERO states that it only makes a promotional call to inform the person about the availability of an offer, the contract signed between AECORP and FROM ZERO (Document AECORP_Resp#1_Doc#4) specifies the sales and quality protocol (ANNEX II A) that includes the sales call, the signing of the contract, and the validation of the contracting (see ANNEX II A – (PREM) – in section 3.3 above).

-

Once all the information provided by the various participants in this file has been reviewed, it is summarized that there are three types of distinct calls:

- Recruitment call, made by the company FROM ZERO, for which no evidence could be obtained.
- Contracting call, made by the company AECORP.
- Welcome call, made as a verification by the company AECORP.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Analysis of the case

1. The facts revealed in this complaint materialize in the alleged fraudulent contracting for the supply of electricity to the complainant.

Article 6 of the GDPR, Lawfulness of processing, provides in its paragraph 1:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Also, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, as long as...”

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is in this Regulation or under any other Union or Member State law referred to in this Regulation, including the need to comply with the legal obligation applicable to the data controller or the need to execute a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract.”

2. The processing of personal data requires the existence of a legal basis that legitimizes it.

Therefore, the fundamental question lies in determining whether the respondent had any of the bases that legitimize the processing of personal data in accordance with Article 6.1 of the GDPR or whether it took the measures that due diligence requires in order to demonstrate that the person from whom it collected and obtained the data to carry out the corresponding supply contract was its owner.

In this regard, the claimant has stated that they received a call in which they identified themselves as their energy company, offering a more advantageous rate. The claimant has indicated that they had all their personal data, receiving after the call a text message with the request for electronic signature of the contract. Finally, they received a text message confirming the contract, despite stating that they had not accepted the message, receiving a charge in their bank account from the marketer.

It should be noted that prior to the complaint submitted to the AEPD, there was a complaint from the claimant that was managed and responded to by the respondent.

From the documentation provided in the file and the statements of the parties involved in the contracting, three entities are involved: first, the respondent (FACTOR ENERGIA), in its capacity as data controller; second, the collaborating company in its capacity as data processor (AECORP); and third, the entity acting as an agent for the former (FROM CERO).

Regarding the *modus operandi* carried out in the contracting, the agent (FROM ZERO) contacts the potential client(s) informing them of the offer(s), which is known as prospecting calls, informing the potential client of the offer and, having shown interest in it, indicates the website where they must enter their phone number and CUPS in order to receive a call with details of the offer and conditions for contracting from the collaborating company (AECORP).

Subsequently, AECORP contacts the potential client by phone, informing them about the product to be contracted, validating their data, and sending them the contract to be signed with the new marketer via

SMS (contracting call). Within 24 hours after the signing, a welcome call is made as a form of verification.

It is true that in this case the first call, known as the prospecting call, is not evidenced, and its recording is not available, thus it is unknown how the personal data of the claimant was obtained (FROM CERO C/ Jorge Juan, 6

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It is noted that the call was random), but it is also true that subsequent to it, AECORP carried out the verification of the contract, providing evidence that supports it: supply contract, contracting call, and certificate issued by the trusted third party (evidencing the confirmation via SMS) and welcome call as a means of verification.

On the other hand, the responding party has stated that “the commercial call was made by an external company collaborating with our company..., called AECORP, with which we maintain a commercial agency relationship (not a service provision), so this company conducts its commercial activity with its own database for which it is responsible for the processing, corresponding the data processing related to the issuance of the call to said company.”

It also states that the personal data was obtained by AECORP, which “sent the contracting obtained by it as a result of its agency work (sales promotion) for subsequent validation and activation with FACTOR.”

In the recording of the contracting call, it is noted that the agent correctly identifies themselves in accordance with the provided protocol, indicates the reason for the call, and collects verbal consent via telephone to continue with the offer, after which the contracting is confirmed.

Furthermore, the claiming party has acknowledged the call as in their complaint they state “That on February 7, 2023, I received a phone call saying that it was my electricity marketing company (BASER), that they could offer me a more advantageous rate,” and also the receipt of the SMS with the request for signature of the contract and another subsequent SMS that sends them the contract, although they state that they did not accept, “Subsequently, I received an SMS (photo attached) with a request for electronic signature of the contract” and “a few minutes later I received another SMS as if I had already signed the contract without having done so.”

However, the responding party has provided a certificate from a trusted third party, which certifies having generated in its records electronic evidence of the operations carried out by AECORP on behalf of the responding party on the date of contracting: the sending of the SMS to the mobile phone ***PHONE.1 for the formalization of the contract which included a link to said contract; access to the website for its signature and the receipt of an HTTPS request from the IP (...) corresponding to the signing event via “Button press for signature.”

Furthermore, the ownership of the line to which the SMS are sent belongs to the claiming party.

3. For all of the above, it must be noted that the assessment that the documentation provided deserves, as well as the actions carried out by the responding party, is that it has acted with reasonable diligence; therefore, the examined conduct cannot be deserving of reproach or administrative sanction in accordance with data protection regulations, since the presence of the subjective element of the infringement is essential to demand responsibility within the framework of administrative law.

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sanctioning authority. The reason is that the entity has observed, in light of the incident, the procedure and diligence required to guarantee the fundamental right to the protection of personal data.

It is necessary to point out that Administrative Sanctioning Law, due to its specificity, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full

applicability of the principle of the presumption of innocence.

The Constitutional Court in its Judgment 76/1990, of April 26, regarding the right to the presumption of innocence and the principle of culpability establishes:

"There can be no doubt that the presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, whether criminal, administrative in general, or tax in particular, since the exercise of *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the right to the presumption of innocence entails: that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The Judgment of the Constitutional Court of 20/02/1989 indicates that "Our doctrine and criminal jurisprudence have maintained that, although both can be considered manifestations of a generic *favor rei*, there is a substantial difference between the right to the presumption of innocence, which unfolds its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet procedural guarantees, and the jurisprudential principle in *dubio pro reo*, which pertains to the moment of evaluation or appreciation of evidence, and which must be judged when, if that indispensable evidentiary activity occurs, there is a rational doubt about the actual concurrence of the objective and subjective elements that make up the criminal type in question."

In short, those principles prevent attributing an administrative infraction when no incriminating evidence has been obtained and accredited regarding the facts that motivate this accusation or the involvement of the alleged infringer in them, applying the principle "*in dubio pro reo*" in case of doubt regarding a specific and decisive fact, which obliges, in any case, to resolve that doubt in the most favorable manner for the interested party.

Therefore, it must be concluded that after analyzing the claimed facts and the actions carried out by this Agency, there are insufficient elements of judgment to attribute to the accused party the violation of the regulations on data protection, in addition to the fact that said entity acted with reasonable diligence in verifying the identity of the complaining party.

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Thus, it is considered that the conduct of the accused party does not violate the principle of legality enshrined in Article 6.1 of the GDPR, classified in Article 83.5 a) of the GDPR.

III

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, since it has not been possible to attribute responsibility for the processing, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to FACTOR ENERGÍA, S.A. with NIF B05470380 and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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